
School name Audit Report: Edmund De Moundeford Audit Date: 28.11.19

Report: Year 2 visit 2

DPE: Linda Mortimer

School member: Headteacher: Julie Lillycrop

Admin: Kirsty Blight

Chair of Governors in attendance

1. Visit details

Details highlighted at the time of the last visit were discussed and GDPR documents and policies were reviewed. This included DPE best practice areas, compliance checklists, record of processing and compliance manager being discussed and demonstrated to the school. The themed audit carried out by NCC in Summer Term 2019 was also discussed and talked through (refer to section 7 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 6.1 below).

It was evident that the school is progressing well in their compliance with GDPR regulations. A proactive approach is taken in the management of the school, with the Headteacher and Business Manager carrying out regular audit walks and spot checks, advising staff of their need for compliance.

2. Audit findings

An audit walk was not completed at the time of the visit, but the Headteacher and Business manager confirmed the following is in place throughout the school:

CCTV - The school has signage that CCTV is in place, but in reality there is no CCTV on site. This is used as a deterrent to support site security.

Classrooms & Cloakrooms – First names only are used on books, work trays, work folders and student birthdays are not displayed

Assessment Folders – Headteacher confirmed that these are filed away securely

Staffroom – Staff are aware not to use pigeon holes for storing any paperwork displaying sensitive data. The Headteacher carries out regular spot checks.

First Aid / Medical Information – Student care plans, allergy information, first aid records are all securely stored.

Kitchen – The kitchen is managed by Edwards and Blake and it was not possible to access this separate building. The Business Manager will check that no allergy information is on display and that any records are filed securely.

School Office – Access arrangements are robust and visitors have a very restricted view of the office with no visibility of computer screens. The school safe is used to store back-ups disks of the school's finance software and accounts.

File Security - Each classroom has a locked cabinet for storing information with PII data. Safeguarding, SEN, HR, Payroll, Finance and Budgeting are stored in locked cabinets in the Headteacher's office.

Printing / Photocopying Solutions – Secure print access in place.

Action points:

DPE strongly recommends - that the school does not allow the third-party hirer to take photos/images of students taking part in after school swimming lessons in the school's swimming pool facility or allowing such images to be published on the hirers website.

Privacy Statement - Add information at main school reception to inform visitors where they can access the school's privacy statement from i.e. school website

The GDPR Best Practice Guide - can be displayed and used to support raising staff awareness. This can be found on Knowledge Bank, in the Best Practice Library under Drip Feeds: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guide>

Sharing of Allergy Information – this was discussed more at length. The Chair of Governors and Headteacher reviewed the risks that could be present should this information not be easily accessible at the serving hatch. Consideration was given to health and safety and the best interests of the students, and the decision was made that student photos including a code relating to their particular allergy, would be available to kitchen staff. However, these images would be stored securely at the end of lunchtime.

The Freedom of Information Policy and Freedom of Information Publication Scheme - will be presented to the Governing Body on 10.12.19. These documents will then be uploaded to the school website (refer to Section 4 below for links to more information).

Management and Retention of Student Images - Ensure there are robust procedures in place to cleanse student images from the school website, iPads, Laptops. Images can be stored for historical purposes, but must only be used for the purpose in which they were originally collected. School will work with their ICT Technician to allocate a secure area on the network for staff to upload student images. The Headteacher already has a routine in place to cleanse the network of an annual basis.

3. Compliance actions that should now be completed

Initial documents:

- **Privacy Notice** – school will review Star Accounts to identify any additional third parties
- **GDPR Policy** – this policy is up for renewal and being presented to the Governing Body on 10.12.19. The policy will then be uploaded to the school website
- **Data Breach Procedure**
- **SAR procedure**
- **Photo and Video consent, guidelines and records**

LM worked with the Business Manager to download the following; Work Away from School, Clear Desk and Screen, Information Classification and Record Management, Photo and Video Guidelines policies/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school. These documents can be shared with staff via the Compliance Manager in Knowledge Bank.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: [https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016 IRMS Toolkit for Schools v5 Master.pdf](https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016%20IRMS%20Toolkit%20for%20Schools%20v5%20Master.pdf)
- DfE toolkit [https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data Protection Toolkit for Schools OpenBeta.pdf](https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf) (Annex 5,1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

The Best Practice checklists form a Data Dashboard for the school and clearly demonstrates the level of progress made in key areas.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>